



## Notification Waiver Determination

### Kirin – Jamieson Wellness

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| <b>Acquisition</b>           | Kirin Holdings Company, Limited ( <b>Kirin</b> ) applied for a notification waiver in respect of its proposed acquisition of 100% of the issued and outstanding share capital in Jamieson Wellness Inc. ( <b>Jamieson</b> ), as described in the transaction documents provided as part of the application (the <b>Acquisition</b> ). |
| <b>Determination</b>         | The Australian Competition and Consumer Commission has determined under section 51ABV(1)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) not to make the notification waiver determination applied for.                                                                                                                      |
| <b>Date of determination</b> | 15 September 2026                                                                                                                                                                                                                                                                                                                     |

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| <b>Parties to the Acquisition</b>    | <p>The acquirer, Kirin, is a company incorporated in Japan which engages in the manufacture and sale of alcoholic and non-alcoholic beverages, pharmaceutical products, and natural health products worldwide through various global brands. In Australia, Kirin is primarily active in alcoholic beverages through its 100% ownership of LION PTY LTD, and in natural health products through its 100% ownership of Blackmores Ltd (<b>Blackmores</b>), an Australian manufacturer and distributor of vitamins and dietary supplements.</p> <p>The target, Jamieson, is headquartered in Toronto, Canada and listed on the Toronto Stock Exchange. Jamieson is active in the manufacturing and supply of vitamins and dietary supplements, including minerals, herbal remedies, probiotics, sports nutrition products, and over-the-counter remedies. It has global sales and its products are supplied in Australia under the brand names Jamieson and Youtheory. Jamieson's primary business is concentrated in Canada, the United States, and China, but a small volume of its products is supplied into Australia through Jamieson's global relationship with Costco.</p> |
| <b>Explanation for determination</b> | <p>In making this notification waiver determination, the Australian Competition and Consumer Commission (<b>ACCC</b>) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>).</p> <p>Based on the information provided in the application, including one or more of the parties' revenues in Australia, the ACCC considers that, if the Acquisition were put into effect, the notification thresholds would be met.</p> <p>The ACCC is unable to reach a view that the Acquisition would not be likely to raise competition issues in any market based on the information provided, given:</p>                                                                                                                                                                                                                                                                                                                                                                                                                           |

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|  | <ul style="list-style-type: none"><li>a. there is horizontal overlap between Kirin (through Blackmores) and Jamieson in the supply of vitamins and other dietary supplements in Australia</li><li>b. Blackmores is the leading provider of vitamins and other dietary supplements in Australia</li><li>c. the relevant markets are unclear and the extent to which the merged entity is likely to be constrained by alternative suppliers is uncertain</li><li>d. the extent to which the Acquisition would remove any competition from Jamieson or potential for expansion in Australia is unclear.</li></ul> <p>The ACCC considers that the Acquisition warrants consideration through the notification process, including via consultation with third parties.</p> <p>Given the above, the ACCC has determined not to make the notification waiver determination applied for.</p> <p>The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.</p> <p>For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's <a href="#">guidance on notification waivers</a> and <a href="#">merger assessment guidelines</a>.</p> |
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**Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act**